SAMPLE FOR GENERAL INFORMATION ONLY, NOT LEGAL ADVICE. HAVE AN ATTORNEY REVIEW BEFORE USE.

This sample is generic. It may not fit your situation and is not a substitute for advice from a licensed Florida attorney or tax advisor. LaunchForma is not a law firm. Replace every [bracketed] item and remove anything that does not apply.

OPERATING AGREEMENT OF [LLC NAME], LLC

A Florida Multi-Member Limited Liability Company (SAMPLE)

This Operating Agreement (the "Agreement") is made effective as of [EFFECTIVE DATE] by the persons listed in Schedule A (each a "Member" and together the "Members") of [LLC NAME], LLC (the "Company").

1. Formation

1.1 The Company was formed as a Florida limited liability company by filing Articles of Organization with the Florida Department of State, Division of Corporations, effective [FORMATION DATE], document number [DOCUMENT NUMBER].

1.2 The Company is governed by this Agreement and by Chapter 605, Florida Statutes (the Florida Revised Limited Liability Company Act) (the "Act"). Where this Agreement does not address a matter, the Act governs.

2. Name, Office, and Registered Agent

2.1 Name: [LLC NAME], LLC.

2.2 Principal office: [STREET ADDRESS, CITY, FL ZIP].

2.3 Registered agent and registered office: [REGISTERED AGENT NAME], [FLORIDA STREET ADDRESS], or as later changed by filing with the Florida Department of State.

3. Purpose

The Company may engage in [DESCRIBE BUSINESS] and any lawful activity permitted under the Act.

4. Term

The Company continues until dissolved under Section 12 or the Act.

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5. Members, Contributions, and Percentages

5.1 The Members, their initial contributions, and their percentage interests are listed in Schedule A.

5.2 No Member must make additional contributions unless the Members approve it by [unanimous / majority-in-interest] vote. [Describe what happens if a Member does not contribute, or delete.]

5.3 No Member earns interest on contributions or may withdraw a contribution except as provided in this Agreement.

6. Allocations and Distributions

6.1 Profits and losses are allocated among the Members [in proportion to their percentage interests / as follows: _____]. [Have a tax advisor review this section.]

6.2 Distributions are made at the times and in the amounts approved by [the Members holding a majority of percentage interests / the Manager(s)], [in proportion to percentage interests], subject to the limits of the Act.

7. Management

7.1 The Company is [member-managed / manager-managed], consistent with its Articles of Organization.

7.2 [If member-managed:] Management is vested in the Members. Unless this Agreement says otherwise, decisions in the ordinary course are made by Members holding [more than 50%] of the percentage interests.

[If manager-managed:] The Company is managed by [MANAGER NAME(S)], who may be removed or replaced by Members holding [___%] of the percentage interests.

7.3 Major decisions. The following require the [unanimous] written consent of the Members: (a) admitting a new Member; (b) selling all or substantially all of the Company's assets; (c) merger, conversion, or dissolution; (d) borrowing or guaranteeing more than [$AMOUNT]; (e) amending this Agreement or the Articles; (f) [OTHER].

7.4 Banking. [NAME(S)] is/are authorized to open, maintain, and close bank accounts in the Company's name. Checks or transfers above [$AMOUNT] require [one / two] authorized signatures.

8. Meetings and Voting

8.1 Meetings may be called by [any Member / Members holding ___%] with [___] days' notice, and may be held in person or by electronic means.

8.2 Any action may be taken without a meeting by written consent of Members holding the percentage interests needed to approve it.

8.3 Votes are counted by percentage interest unless this Agreement says otherwise.

9. Transfers of Interests

9.1 No Member may transfer all or part of an interest without [the written consent of the other Members / first offering it to the Company and the other Members on the same terms (right of first refusal) for [___] days].

9.2 A transferee becomes a Member only as provided in this Agreement or the Act.

10. Death, Incapacity, or Withdrawal

10.1 If a Member dies, is adjudicated incapacitated, or withdraws, [the Company / the remaining Members] [may / must] buy that Member's interest at a price set by [METHOD, e.g., agreed value / appraisal], payable [TERMS]. [Discuss this section with an attorney.]

10.2 Until a purchase closes, the successor holds the economic rights to the interest as provided in the Act.

11. Records, Accounting, and Information

11.1 The Company will keep the records required by the Act at its principal office, including a copy of this Agreement and any amendments.

11.2 Fiscal year: [calendar year]. Each Member may inspect Company records as provided in the Act.

11.3 Company funds will be kept in Company accounts and not commingled with any Member's personal funds.

12. Dissolution and Winding Up

12.1 The Company will be dissolved on [unanimous written consent of the Members / other events] or as provided in the Act.

12.2 On dissolution, the Company will wind up its affairs, pay or provide for its debts, and distribute remaining assets to the Members [in proportion to their percentage interests / per their capital accounts].

13. Liability, Duties, and Indemnification

13.1 No Member is personally liable for the Company's debts and obligations solely by reason of being a member, except as provided by law.

13.2 Members and managers owe the duties provided in the Act, to the extent not modified as permitted by the Act.

13.3 To the extent permitted by the Act, the Company may indemnify Members and managers for acts taken on behalf of the Company in good faith. [Review with an attorney.]

14. Disputes

The Members will first try to resolve disputes by good-faith discussion for [___] days, then [mediation in [COUNTY], Florida / OTHER]. [Review with an attorney.]

15. General

15.1 Amendments must be in writing and signed by [all Members].

15.2 This Agreement is governed by the laws of the State of Florida.

15.3 If any provision is found unenforceable, the rest of the Agreement remains in effect.

15.4 This Agreement is the entire agreement of the Members regarding the Company's internal affairs and may be signed in counterparts and electronically.

Signatures

MEMBERS:

_____ Date: [DATE]

[MEMBER 1 FULL LEGAL NAME]

_____ Date: [DATE]

[MEMBER 2 FULL LEGAL NAME]

[Add lines as needed. If manager-managed, add MANAGER signature lines.]

Schedule A: Members

Member name	Address	Initial contribution (describe and agreed value)	Percentage interest
[NAME]	[ADDRESS]	[CONTRIBUTION]	[__%]
[NAME]	[ADDRESS]	[CONTRIBUTION]	[__%]
Total			**100%**